

John Trevor, she rather improves it by her husband's teaching (*e*). The reasons upon which her disabilities are founded, are her own interest or her husband's, or both (*d*). Where these are not concerned, she possesses as much legal capacity as if she were perfectly *sui juris*. Thus, she may execute powers simply collateral (*e*), and (somewhat contrary to principle) even powers appendant, or in gross (*f*). Now at law, the trustee is considered as the sole and absolute proprietor, and therefore he can have no power that does not flow from the legal ownership; but in equity, the absolute interest is vested in the *cestui que trust*, and, as the trustee is regarded in the light of a mere instrument, any authority communicated to a trustee must have the character of a power simply collateral (*g*). It follows that if a discretionary trust be committed to a *feme covert*, there is nothing to prevent her due administration of it, so far as relates to her legal *judgment and capacity*. At the same time a woman's will is not always her own, and if a trust were confided to a *feme covert*, the husband would, in fact, exercise no little influence; and, indeed, as [in cases not falling within the Married Women's Property Act, 1882], the husband is liable for her breaches of trust, he must, for his own protection, look to the manner in which she discharges the office, and therefore she cannot be allowed to execute the trust without his concurrence (*h*). [This last remark, however, does not apply to the case of a married woman appointed a trustee, or to a *feme sole* trustee, marrying since the recent Act (*i*), in both of which cases the husband is exempted from

330, *per* Sir John Trevor; and see marginal note to *Moore v. Hussey*, Hob. 95; and see *Needler v. Bishop of Winchester*, Hob. 225.

(*e*) *Bell v. Hyde*, Pr. Ch. 330.

(*d*) *Compton v. Collinson*, 2 B. C. C. 387, *per* Buller, J.

(*e*) Co. Lit. 112, a; *ib.* 187, b; *Lord Antrim v. Duke of Buckingham*, 2 Freem. 168, *per* Lord Keeper Bridgman; *Blithe's case*, *ib.* 91, *vid.* 2d resolution; *Godolphin v. Godolphin*, 1 Ves. 23, *per* Lord Hardwicke.

(*f*) See Sugden on Powers, c. 5, sect. 1, 8th Ed.

(*g*) See *infra*.

(*h*) See *Smith v. Smith*, 21 Beav. 385; *Drummond v. Tracy*, Johns. 608; *Kingham v. Lee*, 15 Sim. 401; *Avery v. Griffin*, 6 L. R. Eq. 606; *Lloyd v. Pughe*, 8 L. R. Ch. App. 88; *Wainford v. Heyl*, 20 L. R. Eq. 321; [*Re Smith's Estate*, 48 L. J. N. S. Ch. 205].

[(*i*) 45 & 46 Vict. c. 75, ss. 1, 18, 24.]